

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sarah Turner	Team: Team # 3	CCRB Case #: 200716335	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 11/02/2007 10:45 PM	Location of Incident: 300 West 10th Street	18 Mo. SOL 5/2/2009	Precinct: 06
Date/Time CV Reported Fri, 11/02/2007 11:40 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 11/07/2007 4:56 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Arthur Truscelli	20902	931348	006 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Robert Jackson	23069	906502	006 PCT
2. SGT Michael Broderick	03382	901220	006 PCT
3. POM Zaka Rehman	00820	933238	006 PCT
4. POM David Sansone	02861	939414	006 PCT
5. POM Christophe Ohare	22266	898207	006 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Arthur Truscelli	Force: PO Arthur Truscelli used physical force against § 87(2)(b)	A . Unsubstantiated
B . POM Arthur Truscelli	Discourtesy: PO Arthur Truscelli spoke obscenely to § 87(2)(b)	B . Unsubstantiated

Synopsis

On November 2, 2007, § 87(2)(b) filed this complaint with IAB. The complaint was referred to the CCRB on November 7, 2007, via IAB log number 07-42596. § 87(2)(b) stated that earlier that same evening, he went to a back street to urinate and he was stopped by a white “Italian-looking” male, identified by the investigation as PO Arthur Truscelli, who issued him a summons. He alleged that when he asked why he was being harassed when there were kids fighting right across the street, PO Truscelli allegedly shoved him and told him to “shut the fuck up” (allegations A and B). § 87(2)(b) fell to the ground and sustained a dislocated shoulder. He was issued a summons § 87(2)(b).

§ 87(2)(g)

It is therefore recommended that allegations A and B be closed as *unsubstantiated*.

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b), a § 87(2)(b) Hispanic male with black hair and brown eyes, was interviewed at the CCRB on November 26, 2007 by Investigator Mickens (encl 6H-J). § 87(2)(b) also provided phone statements on November 16, 2007 and March 11, 2008 (encl 6G, 21H) and was interviewed by IAB on November 3, 2007 (encl 6D-E). § 87(2)(b)'s statements, § 87(2)(g)

On November 2, 2007, § 87(2)(b) met his friend § 87(2)(b) for Happy Hour at a bar on Christopher Street in Manhattan. He consumed 5 or 6 Heineken beers and left the bar at approximately 9:40 PM to catch a bus at Union Square. He denied being drunk. § 87(2)(b) was wearing a backpack at the time and was talking on his cell phone to his boyfriend § 87(2)(b)'s mother, § 87(2)(b). As he was walking on West 10th Street, § 87(2)(b) got the urge to urinate and he stopped by a big black disposable bin to do so. He unzipped his pants but decided not to urinate. He later stated that he did not recall whether he urinated or not but he zipped up his pants and walked away, still talking to § 87(2)(b). [In his statement to IAB, he said that he wanted to urinate but could not.]

As § 87(2)(b) was walking and talking on his cell phone, a black unmarked sedan pulled up and stopped near a well-lit building. Two plainclothes officers jumped out of the sedan and approached § 87(2)(b) flashing their badges. One of the officers, a 5'7" 180 lbs. black male with glasses, “well-dressed” and wearing a jacket, identified by the investigation as PO Robert Jackson, was in the back seat and the other officer, a 5'9" 220-240 lbs. 37-39 year-old white male with receding hair and wearing jeans, a light jacket, and a light blue shirt, identified by the investigation as PO Arthur Truscelli, was in the front seat. [In his complaint to IAB, he stated that his officer was “Italian-looking.”] One of the officers (he did not recall which one) asked him for his ID. § 87(2)(b) went into his right jacket pocket, took out his ID, and gave it to PO Jackson. The officers went back to their vehicle and got in their respective seats.

§ 87(2)(b) continued to talk on the phone with § 87(2)(b) for approximately 5 minutes while the officers sat in their car. [In his first phone statement, he was on the phone with § 87(2)(b). He was standing near the sedan and PO Truscelli got out of the front seat and yelled at him to “get off the phone,” but § 87(2)(b) ignored him because he did not see a reason to talk to the officer. Approximately 15-16 white kids were making noise across the street and he asked § 87(2)(b) why the officers were harassing him and not the kids.

PO Truscelli grabbed § 87(2)(b)'s right shoulder of his coat with his right hand, shoved him and said, “Shut the fuck up.” [In his first phone statement, he alleged PO Truscelli pushed him after PO Jackson issued him the summons but he had not said anything to PO Truscelli. In that statement, he did not allege that PO Truscelli cursed at him.] § 87(2)(b) fell on the sidewalk and the left side of his head and left shoulder hit the ground. When asked in his March phone statement how he sustained the injuries to the right side of his face, he stated that he fell down a second time and landed on his right side this time, hitting

the right side of his face on the ground. [He did not say this in any of his other statements.] § 87(2)(b) tried to get up but could not and he felt a surge of pain. He started scrambling for his cell phone and his backpack. § 87(2)(b) started to cry and curse at PO Truscelli, "You broke my fucking shoulder. I did not do anything. You fucked me up, there was no need for that. Why did you do that?" PO Truscelli told § 87(2)(b) to "shut up."

§ 87(2)(b) called § 87(2)(b) on his cell phone. He managed to walk over to the police car and told § 87(2)(b) the car's license plate number so he could write it down. A man, identified by § 87(2)(b) as § 87(2)(b) was walking by and he asked the officers why they treated § 87(2)(b) that way. PO Truscelli and § 87(2)(b) had "an unfriendly conversation" but § 87(2)(b) did not explain what he meant by that. PO Truscelli told § 87(2)(b) "You did not see anything. Shut up and go away." § 87(2)(b) gave his cell phone to § 87(2)(b) and asked him to speak to § 87(2)(b) PO Jackson gave § 87(2)(b) a summons and told him he could leave, but § 87(2)(b) did not want to leave until he got an ambulance. § 87(2)(b) thought § 87(2)(b) called for an ambulance with his phone. The officers left before the ambulance came but § 87(2)(b) remained on scene. § 87(2)(b) went to § 87(2)(b) and later went to his private practitioner and an orthopedic surgeon because his shoulder was dislocated. He also filed a complaint with the Gay and Lesbian Injustice Project, but the officers did not make any references to his sexuality or sexual orientation. At the time of his interview, § 87(2)(b) provided a copy of the summons issued to him by PO Robert Jackson.

ACR & Medical Records (encl 6B,6C, 6F)

§ 87(2)(a) PBH §18(6)

§ 87(2)(b)

Photographs (encl 6K-T)

§ 87(2)(b) provided photographs that were taken by his neighbor, § 87(2)(b), between November 5, 2007 and November 7, 2007. The photos show a large bruise on his left bicep and a red mark under his right eye.

Results of Investigation

§ 87(2)(b)

§ 87(2)(b) was identified by § 87(2)(b) by name as a witness to the incident. The SPRINT lists a male caller named § 87(2)(b) and provides a cell phone number. Attempts were made to interview § 87(2)(b) in person, which were unsuccessful, but he did provide a phone statement on January 4, 2008 (encl 7A-B).

On November 2, 2007, § 87(2)(b) was out walking his dog at approximately 10 or 11 PM in the vicinity of West 10th Street near Weehawken Street in Manhattan when he saw a short, 5'4" Hispanic male with dark hair, identified from the investigation as § 87(2)(b) being confronted by three to four white male officers in street clothes. § 87(2)(b) could not hear what was being said but the situation appeared confrontational in nature. The officers were on the sidewalk near the street and § 87(2)(b) had his back to a building that was two or three buildings down from the corner.

§ 87(2)(b) stopped to watch what was happening and he saw one of the officers, identified by the investigation as PO Truscelli, push § 87(2)(b) two times causing him to fall on the sidewalk. § 87(2)(b) immediately called 911 from his cell phone. The officers did not do anything further physically to § 87(2)(b) but when he sat up they engaged in further conversation. § 87(2)(b) remained a distance away from the incident on the southeast corner of Weehawken and West 10th Street. The officers got into an unmarked sedan and drove off.

§ 87(2)(b) was still on the phone with 911 and he approached § 87(2)(b) who was sitting on the ground, and asked him if he was okay. § 87(2)(b) told § 87(2)(b) that his left arm and shoulder hurt and he was not able to move them well. § 87(2)(b) told 911 that they needed an ambulance. In his job, § 87(2)(b) has experience with people who have alcohol problems and he assessed § 87(2)(b) as having had a few drinks but not "dramatically intoxicated."

§ 87(2)(b) was coherent when he spoke with § 87(2)(b) and he stated that the officers had given him a summons for public urination and he had not said anything, then one of them pushed him. § 87(2)(b)

§ 87(2)(b) observed a patrol car drive by and shortly thereafter the 911 operator called him back and informed him that the officers had not been able to find him and § 87(2)(b). § 87(2)(b) walked down and flagged over the patrol car; then he and § 87(2)(b) explained to the officers what happened.

§ 87(2)(b) became more agitated and less coherent during his explanation, and he told the officers that he had had a few drinks that evening. While they were talking to the patrol officers, the original unmarked sedan drove up and the same three or four officers got out. PO Truscelli did all the talking and he asked what was going on. § 87(2)(b) told him that he (PO Truscelli) had pushed § 87(2)(b). At first PO Truscelli denied pushing § 87(2)(b) saying, "Don't give me this shit." Then PO Truscelli told the patrol officers what happened and told § 87(2)(b) they would get him an ambulance "no problem, don't worry."

Shortly thereafter an ambulance arrived on the scene. The officers in the unmarked sedan drove off first, then the patrol officers. There were two ambulance workers, § 87(2)(b) and § 87(2)(b) at that point. § 87(2)(b) had § 87(2)(b) speak with his friend over the phone and § 87(2)(b) explained to the friend what happened.

EMT § 87(2)(b)

§ 87(2)(b), a § 87(2)(b) black male EMT with black hair and brown eyes, was interviewed at the CCRB on August 19, 2008 (encl 8A-C). EMT § 87(2)(b) filled out § 87(2)(b)'s ACR, which stated that § 87(2)(b) had alcohol on his breath and an alcohol bottle was found on scene. It also states, "Patient is extremely uncooperative and rude from time to time...Patient goes from being rude to apologetic." § 87(2)(b) was diagnosed with a left shoulder dislocation.

EMT § 87(2)(b) stated that on November 2, 2007, at approximately 10:45 PM, he and his partner, EMT § 87(2)(b) responded to a call for an injury in front of a building. There were already a couple of police cars, both marked and unmarked, and two or three police officers (one in plainclothes, two in uniform) on the scene when they arrived. There was also a short, 5'5" Hispanic male, identified by name as § 87(2)(b) and assumed to be § 87(2)(b). § 87(2)(b) was standing in front of a tree that was on the curb in front of the building.

The EMTs got out of the ambulance and approached, introducing themselves. § 87(2)(b) immediately stated that an officer pushed him, but EMT § 87(2)(b) did not see any officer have physical contact with § 87(2)(b) and § 87(2)(b) did not identify anyone on the scene as the subject of this allegation. He was holding his shoulder, and appeared to be intoxicated due to his lack of balance, slurring of words, and the smell of alcohol on his breath. EMT § 87(2)(b) described him as angry distraught and cursing at the EMTs and the officers, saying that the officers "fucked [him] up." He also mentioned a group of kids fighting in the same area, but EMT § 87(2)(b) did not see any kids at any point. § 87(2)(b) accused the EMTs of colluding with the NYPD, and was distrustful of them and cursing at them. The officers informed the EMTs that § 87(2)(b) had been issued a summons § 87(2)(b).

There was a white male with a dog in the area, identified by the investigation as § 87(2)(b). He appeared to have been talking to § 87(2)(b) before. § 87(2)(b) did not point out any of the officers as the subject of the push. The EMTs determined that § 87(2)(b) had a shoulder dislocation, which he stated could happen from force or bending it one direction too far, but generally not from a push. Someone could sustain a dislocation from hitting the ground, however.

§ 87(2)(b) did not outright refuse medical attention, but he was uncooperative and making comments to EMT § 87(2)(b) and EMT § 87(2)(b) both of whom are black. EMT § 87(2)(b) did not recall § 87(2)(b) using the word "nigger," but § 87(2)(b) was saying that he wanted a white EMT because they knew what they were doing more than EMT § 87(2)(b). EMT § 87(2)(b) did not hear the officers make any comments to § 87(2)(b) regarding race, ethnicity or sexual orientation. In the ambulance, EMT § 87(2)(b) treated § 87(2)(b)'s dislocation with a splint and § 87(2)(b) asked EMT § 87(2)(b) for his name and shield number, which he provided. § 87(2)(b) also called IAB and had EMT § 87(2)(b) speak with the investigator, to whom he also gave his name and shield number.

When shown the ACR and questioned about the bottle listed, EMT § 87(2)(b) stated that § 87(2)(b) had a bottle in his shoulder bag or backpack, which EMT § 87(2)(b) noticed when they were in the ambulance. § 87(2)(b) made no additional comments about the officers doing anything to him, and he did not say whether he ended up on the ground, but he repeated that he was pushed.

EMT § 87(2)(b), a § 87(2)(b) black male EMT with black hair, brown eyes, glasses and tattoos, was interviewed at the CCRB on August 19, 2008 (encl 9A-C).

EMT § 87(2)(b) stated that on November 2, 2007, he and EMT § 87(2)(b) responded to a call for an injury. There were two uniformed white male officers on the scene when they arrived. He did not recall there being any mention of an assault and he did not have any interaction with the officers.

The patient, identified by the investigation as § 87(2)(b) was initially uncooperative, but after the officers left he was more cooperative. § 87(2)(b) was unsteady and appeared to be intoxicated, due to the smell of alcohol coming from him. EMT § 87(2)(b) did not recall any statements made by § 87(2)(b) including any statements that he was pushed, and he did not recall there being an alcohol bottle on the scene. EMT § 87(2)(b) did not recall § 87(2)(b) refusing medical attention at any point. § 87(2)(b) was complaining of pain, but EMT § 87(2)(b) did not recall him making comments about his or EMT § 87(2)(b)'s race or ethnicity or using the word "nigger." He did not hear any interaction between § 87(2)(b) and the officers, nor did he see the officers ever have any physical contact with § 87(2)(b) or specifically push him.

Identification of Officers Interviewed

§ 87(2)(b) provided a copy of the summons he was issued, which listed PO Robert Jackson as the issuer. The roll call for tour 3 in the 6th Precinct from November 2, 2007 lists PO Jackson working anti-crime with PO Arthur Truscelli, and Sgt. Michael Broderick is listed as the anti-crime supervisor, § 87(2)(g). From the SPRINT, it was determined that Sector E responded to the 911 call. PO David Sansone was working sector E with PO Rehman, § 87(2)(g). The tour 1 roll call for the 6th Precinct from November 3, 2007 lists PO Christopher O'Hare working with Det. Rinaldi in anti-crime, § 87(2)(g).

Officer Statements

PO Robert Jackson

PO Robert Jackson, a § 87(2)(b) black male with a bald head and brown eyes, was interviewed at the CCRB on April 3, 2008 (encl 12G-I). PO Jackson filled out the criminal summons that was issued to § 87(2)(b). The summons was issued at 11:00 PM. He had no memo book entries relating to the incident (encl 12A-D).

On November 2, 2007, PO Jackson was working with PO Truscelli and Sgt. Broderick. At approximately 10:45 PM they drove down Christopher Street and dropped off Sgt. Broderick because he wanted to conduct an observation. PO Jackson and PO Truscelli drove down Weehawken Street and made a right onto West 10th Street. In front of 30 West 10th Street, PO Jackson observed a short Hispanic man urinating. The man, identified by the investigation as § 87(2)(b) was standing next to some garbage bins and PO Jackson could see him urinating.

PO Jackson decided to investigate. He and PO Truscelli exited the vehicle, produced their shields and verbally identified themselves as police officers. § 87(2)(b) was speaking on his cell phone and was upset because of an argument with his boyfriend. PO Jackson saw no evidence that § 87(2)(b) was under the influence of anything. PO Jackson requested that § 87(2)(b) end his phone call and provide his ID, and § 87(2)(b) complied with both directives. PO Jackson informed § 87(2)(b) that he would be receiving a summons for public urination and § 87(2)(b) seemed to understand this. He did not argue or get upset.

During this incident, PO Truscelli was only with PO Jackson for a brief period. Shortly after they stopped § 87(2)(b) Sgt. Broderick requested that PO Truscelli investigate a group of unknown individuals who were walking west on West 10th Street towards Weehawken Street. PO Jackson recalled that the group was very loud but he could not see what they were doing or if PO Truscelli interacted with them.

PO Jackson returned to his vehicle with § 87(2)(b)'s ID, performed a warrant check, which was negative, and wrote the summons. He then exited the vehicle, returned to § 87(2)(b) and issued him the

summons. PO Jackson did not recall any civilians approaching the scene while he issued the summons, including specifically a white male walking a dog. PO Jackson could not recall if PO Truscelli had any verbal interactions with § 87(2)(b) but no officer ever pushed § 87(2)(b) or had any physical contact with him. PO Jackson did not see § 87(2)(b) stumble or fall to the ground.

PO Jackson did not recall if PO Truscelli was with him when he conducted the warrant check or issued the summons, but two or three minutes after the summons was issued, PO Truscelli and Sgt. Broderick returned to the vehicle and left the scene with PO Jackson. § 87(2)(b) was still standing in front of 300 West 10th Street.

At 10:55 PM, the officers received a radio run for a 10-34, a male being assaulted, in the vicinity of West 10th Street and Weehawken Street. No details were given regarding the name of the perpetrator, the victim, weapons involved or injuries sustained. The officers returned to the scene within a few minutes and at that time, an ambulance had arrived, and EMS personnel and three or four uniformed officers from the 6th Precinct were on the scene. PO Jackson did not know who called the ambulance. PO Jackson did not recognize any of the officers.

PO Jackson heard § 87(2)(b) complaining that he had been issued a summons and had been pushed. This was the first time PO Jackson had become aware of § 87(2)(b) complaining that he was pushed. At no time did § 87(2)(b) accuse PO Jackson, PO Truscelli or Sgt. Broderick, or any other officer, of pushing him. PO Jackson did not observe any injuries on § 87(2)(b) nor was he aware of § 87(2)(b)'s shoulder being injured.

EMS personnel were attempting to treat § 87(2)(b) but he continually refused treatment. PO Jackson did not recall § 87(2)(b) making racially-based comments but he did recall one of the EMTs being a black male. Since § 87(2)(b) was refusing treatment, the officers and EMS left. § 87(2)(b) did not speak to PO Jackson, PO Truscelli or Sgt. Broderick and PO Jackson did not recall anything occurring during either interaction with § 87(2)(b) that could have caused an injury to his shoulder. PO Jackson did not recall § 87(2)(b) cursing at him during the incident and he denied that he, PO Truscelli or Sgt. Broderick ever told § 87(2)(b) "Shut the fuck up," or "Don't give me this shit." None of the officers used profanity during the incident.

PO Arthur Truscelli

PO Arthur Truscelli, § 87(2)(b) white male with black hair and green eyes, was interviewed at the CCRB on March 14, 2008 (encl 10A-C). He was working on November 2, 2007 from 1:00 PM until 9:35 PM, with an additional three hours of overtime, dressed in plainclothes and assigned to the 6th Precinct anti-crime team with PO Robert Jackson and Sgt. Michael Broderick. He and PO Jackson were in an unmarked black Chevy Impala, which he was driving. He did not have his memo book with him, but he stated that the entries would only include his present for duty time, meal and end of tour. § 87(2)(g)

PO Truscelli recalled that § 87(2)(b) was on the right side of the street when they observed him urinating at approximately 10:45 PM on November 2, 2007. When they approached with their shields out, they also turned on their car lights to further identify themselves as police officers. § 87(2)(b) provided his ID but questioned the officers' reason for stopping him. PO Truscelli recalled him saying, "Don't you have anything better to do," but he did not believe § 87(2)(b) was intoxicated and he did not observe any beer or alcohol bottles in the area.

In the vehicle, PO Jackson wrote the summons while PO Truscelli put a call over the citywide radio asking for a warrant check. Citywide 11 conducted the check but PO Truscelli did not recall specifically who checked for warrants. During this time, § 87(2)(b) remained on the sidewalk but PO Truscelli did not pay much attention to him and did not recall him doing anything in particular, including talking on the phone. After approximately 2 or 3 minutes, a group of 10 to 15 juveniles came walking down the block, kicking over garbage cans and yelling and screaming. PO Truscelli got out of the vehicle to stop them.

Sgt. Broderick, who had been walking to that location in response to the call of the male stopped, came down Weehawken Street and assisted PO Truscelli in stopping the juveniles and asking them for ID. The officers checked the juveniles' IDs and sent them on their way. They did not issue any summonses, and were merely telling the juveniles that they could not do what they were doing. PO Truscelli did not recall if he filled out any UF250s for them or wrote any of their information down.

Sgt. Broderick and PO Truscelli walked back and got in their vehicle with PO Jackson, who was still writing the summons. After 30 seconds to a minute, PO Jackson got out of the vehicle and handed the summons to § 87(2)(b). PO Truscelli did not recall any other civilians in the area, including a man with two dogs. § 87(2)(b) was “definitely upset” at being issued the summons but PO Truscelli did not recall if he cursed at the officers. PO Truscelli denied pushing § 87(2)(b) or having any physical contact with him, and none of the other officers pushed him. § 87(2)(b) never stumbled or fell.

Approximately 10 minutes after they left the area, the officers received a call of an assault in the same location. There were a few uniformed male officers (he did not recall who) that were interacting with § 87(2)(b) who was “very belligerent,” yelling and cursing at the officers, and claiming he was assaulted. The officers requested EMS, who responded, and § 87(2)(b) was yelling and cursing at the EMS as well.

PO Truscelli recalled § 87(2)(b) telling a black EMT something to the effect of, “I’m not getting in the ambulance with a nigger.” He definitely said the word “nigger.” The EMT did not say anything but he continued to try and get § 87(2)(b) in the ambulance. § 87(2)(b) was not compliant. A man who was walking his dogs came over to the location and spoke with Sgt. Broderick, but he did not speak with PO Truscelli and PO Truscelli could not hear what was said.

§ 87(2)(b) never accused any of the officers of pushing him and he did not have any conversation with PO Jackson, PO Truscelli or Sgt. Broderick. § 87(2)(b) was standing the entire time and did not have any visible injuries. PO Truscelli never saw § 87(2)(b) get in the ambulance but EMS was still on the scene when he and the other officers left. None of the officers ever used profanity towards § 87(2)(b) and they specifically did not tell him, “Shut the fuck up,” or “Don’t give me this shit.”

Sgt. Michael Broderick

Sgt. Michael Broderick, was interviewed at the CCRB on April 2, 2008 (encl 11D-E). On November 2, 2007, Sgt. Broderick worked from 4 PM until 12 AM. His assignment was Anti-Crime with PO Truscelli and PO Jackson. They were dressed in plainclothes and assigned to an unmarked black Chevy Impala. Sgt. Broderick brought his memobook to the interview but did not have any entries regarding this incident (encl 11A-C).

On November 2, 2007, at approximately 10:45 PM Sgt. Broderick noticed a group of 4 or 5 people on Christopher Street and followed them because they became boisterous and started knocking over garbage cans. He subsequently approached them and broke up an argument. Sgt. Broderick was with the group for a total of 2-3 minutes and never requested any form of identification because he did not give them a summons. At this point, Sgt. Broderick was half a block away from the other officers and noticed their vehicle up the block but did not recall what they were doing.

Sgt. Broderick met PO Truscelli and PO Jackson in the vehicle, at which time PO Truscelli mentioned that he had written a summons. However, at the time, Sgt. Broderick was not aware of the details. Five minutes later, as they drove towards the stationhouse, they received a call regarding a 10-34 (assault) in the vicinity of their previous location.

At approximately 10:55 PM, the officers returned to West 10th Street and responded to an assault. The male assaulted, § 87(2)(b) was sitting on the ground, and a taller male with a dog, § 87(2)(b) was standing next to him. When questioned, § 87(2)(b) claimed he saw a group of 4 or 5 people push § 87(2)(b) to the ground which led to his injuries. He was unable to describe the perpetrators and never claimed that police officers were involved.

PO Truscelli then informed Sgt. Broderick that they had issued § 87(2)(b) the summons § 87(2)(b), and afterwards, they returned to their vehicle. § 87(2)(b) had not given them any problems. When asked about the incident, § 87(2)(b) was belligerent and refused to talk to Sgt. Broderick. Instead, he stated, “I want an ambulance,” and told Sgt. Broderick to “get away from [him].” Sgt. Broderick did not recall whether § 87(2)(b) mentioned if police were the aggressors or not.

When the ambulance arrived 1-2 minutes later and the two male EMTs attempted to help § 87(2)(b) he refused to speak to them and asserted that he did not need their help. He exclaimed, “Guys, get away from me. Don’t touch me. I don’t want anybody’s help”. Thus, the EMTs and the police officers walked away. Sgt. Broderick filed the case “unnecessary” and did not make a report. The police officers remained on scene for a total of 3-4 minutes, and when they left, the EMTs were still there. Sgt. Broderick did not know if the EMTs ultimately treated § 87(2)(b). He did not hear § 87(2)(b) comment on the race of the EMTs and the officers did not make comments on either § 87(2)(b)’s race or his sexuality.

Sgt. Broderick did not observe any injuries on § 87(2)(b) and supposed that he may have been intoxicated although he did not notice any alcohol at the scene. He did not witness any physical contact between § 87(2)(b) PO Truscelli, and PO Jackson. Because he did not see any injuries on § 87(2)(b) Sgt. Broderick did not file any reports.

Sgt. Broderick never heard any officer say, “Don’t give me this shit” and never heard any officer tell § 87(2)(b) to “shut up and get away. You did not see anything. Shut up and leave.” He furthermore never heard § 87(2)(b) state, “You broke my fucking shoulder. You fucked me up. Why would you do that?” No officers ever used profanity towards § 87(2)(b).

PO David Sansone

On August 22, 2008, PO David Sansone was interviewed at the CCRB (encl 13E-F). PO Sansone was working from 5:30 PM on November 2, 2007, until 2:05 AM on November 3, 2007, dressed in uniform and assigned to patrol sectors E, F, and H with PO Rehman in marked van 5957. PO Sansone read the following memo book entries into the record: At approximately 10:55 PM, the officers responded to a 10-34 assault involving a Hispanic male at the corner of Weehawken and West 10th Streets. At 11:00 PM they arrived on the scene, at which time they were approached by a white male who was with the victim, who claimed that his shoulder was injured due to a previous assault. An ambulance was requested. The Hispanic male was highly intoxicated and uncooperative. At 11:15 PM, the officers went back on patrol and the job was marked 10-90Y (unnecessary). EMS was on scene and the Hispanic male was refusing medical attention when they left (encl 13A-D).

PO Sansone stated that on November 2, 2007, he and PO Rehman were on patrol at approximately 10:55 PM when they received a call of an assault in progress on the corner of Weehawken and West 10th Streets. PO Sansone recalled there being a description of the perpetrators: two white males and a black male in an unmarked black vehicle. The license plate number was also provided, but PO Sansone did not recall what that was or have it written in his memo book. He and PO Rehman responded to the location but did not initially see the victim, a Hispanic male later identified from his photo as § 87(2)(b).

A white male witness, identified by the investigation as § 87(2)(b) approached the officers and indicated to them where § 87(2)(b) was, standing on the block. PO Rehman and PO Sansone did not get much information out of § 87(2)(b) who was combative, uncooperative and appeared intoxicated, due to the fact that he was incoherent. § 87(2)(b) wanted EMS but then told the officers to go “fuck” themselves and did not want their help. § 87(2)(b) did not appear to know what happened either and he made no statements that § 87(2)(b) was pushed. § 87(2)(b) did not appear injured.

Shortly after PO Rehman and PO Sansone arrived, Sgt. Broderick, PO Truscelli and PO Jackson arrived in a vehicle matching the description of the suspects’ vehicle. The license plate number was a match. Sgt. Broderick got out of the vehicle and informed the officers that this was a job relating to a previous job that the anti-crime team had handled. Sgt. Broderick began speaking with § 87(2)(b) who continued to be uncooperative and cursed at Sgt. Broderick. No officer used profanity towards § 87(2)(b).

Approximately 5 minutes after PO Sansone and PO Rehman arrived on the scene, EMS arrived. The EMTs got out; one of them was a white Hispanic or darker complexioned white male and the other was a black male. Upon direct questioning, PO Sansone recalled § 87(2)(b) saying, “I need white EMS not you,” to the black EMT when he first approached. § 87(2)(b) also called the black EMT a “nigger” and refused medical attention. The EMTs did not respond but they did not want to help him because he was being uncooperative.

PO Sansone did not see § 87(2)(b) on the ground at any point and he did not see any of the officers have any physical contact with § 87(2)(b). He spoke with Sgt. Broderick the day prior to his interview, at which time he learned that § 87(2)(b) had been issued a summons § 87(2)(b).

Officers Not Interviewed

§ 87(2)(g)

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Medical Records

§ 87(2)(b)'s medical records were subpoenaed from § 87(2)(b). He was given an MRI and was diagnosed with a left shoulder dislocation and a bruise on his upper right cheek. He was given Morphine and a sling.

Police Documents

The **SPRINT** evinces that the 6th Precinct Anti-Crime unit had a stop in front of 300 West 10th Street at 10:41 PM (encl 16C-I). § 87(2)(b)'s name and information are transmitted via radio. A duplicate **SPRINT** shows that at 10:54 PM a male caller, § 87(2)(b) identified by the investigation as § 87(2)(b) stated that there was a male assaulted by four males in a car. The victim was on the phone with another operator and stated that his shoulder was hurt. Sector E and the Summons Auto responded, as did an Anti-Crime vehicle. § 87(2)(b) stated that he saw four males get out of a vehicle and push the male victim. One perp was about 6'2", 250 lbs. and they fled the scene. EMS responded at 11:21 PM. The 6th Precinct **roll call** for tour 3 on November 2, 2007 shows that Sgt. Matthew Broderick was the Anti-Crime supervisor in vehicle 448, and PO Arthur Truscelli and PO Robert Jackson were also working Anti-Crime in the same vehicle (encl 17A-G). The **roll call** for tour 1 on November 3, 2007 shows Det. Rinaldi and PO O'Hare as assigned to Anti-Crime (encl 17H). PO Sansone and PO Rehman were assigned to sector E/F and there is no one listed for the Summons Auto. A check conducted by New York State found that no **warrant check** was conducted for § 87(2)(b) and there was no **UF250 report** on file for him, nor were there any UF250 reports filed by PO Truscelli on the date of the incident, according to the **UF250 log** (encl 19A-D).

Status of the Summons/Conviction History

§ 87(2)(b) § 87(2)(b)
§ 87(2)(b)

Civilian CCRB History

This is the only case on file for § 87(2)(b) (encl 2A).

Officer CCRB History

In his 6 years employed with the NYPD, PO Arthur Truscelli has had no substantiated CCRB allegations (encl 3A).

Conclusions and Recommendations

Identification of the Subject Officer

§ 87(2)(b) described the officer who pushed him and cursed at him as a 5'8"-9" tall heavy 220-240 lbs 37-39 year-old white male with receding hair who was sitting in the front seat of the unmarked vehicle. § 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)

Additionally, in his call to IAB, he stated that the officer was "Italian-looking." § 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)

Undisputed Facts

On November 2, 2007, PO Truscelli and PO Jackson stopped § 87(2)(b) who was intoxicated, and issued him a summons § 87(2)(b), which PO Jackson wrote. During the encounter, a group of teenagers caused a disturbance and PO Truscelli and Sgt. Broderick interacted with them. After the officers left, § 87(2)(b) called 911 to report an assault and PO Jackson, PO Truscelli and Sgt. Broderick responded back to the location. PO Sansone and PO Rehman also responded, as did EMS. § 87(2)(b) sustained a dislocated shoulder, for which he was treated at § 87(2)(b).

Facts in Dispute

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(g)

PO Jackson and PO Truscelli maintained that they stopped him for urinating in public, § 87(2)(g)

§ 87(2)(b) stated that when he asked his friend's mother over the phone why the officers were harassing him and not a group of rowdy kids, PO Truscelli grabbed his shoulder and shoved him, causing him to fall 5 or 6 feet away from where he was standing on the sidewalk and the left side of his head and left shoulder hit the ground. In his second phone statement, he stated that he fell a second time, hitting the right side of his face and causing injury. § 87(2)(b) stated that he saw PO Truscelli push § 87(2)(b) two times causing him to fall on the sidewalk. § 87(2)(b) alleged that PO Truscelli was with three other white males, § 87(2)(g)

PO Truscelli denied pushing § 87(2)(b) and all of the officers deny that he was ever pushed or on the ground during their interaction. § 87(2)(g)

§ 87(2)(b) alleged that when PO Truscelli shoved him, he also told him to "shut the fuck up." He did not allege this initially to IAB; instead he stated that the officer told him to "shut up." § 87(2)(g)

PO Truscelli denied cursing at § 87(2)(b) and the other officers stated that they never heard him curse at § 87(2)(b). § 87(2)(b), the only independent witness, did not hear what the officers were saying § 87(2)(g)

§ 87(2)(g)

EMT § 87(2)(b) noted in the ACR that § 87(2)(b) had alcohol on his breath and an alcohol bottle was found on scene. It also states, "Patient is extremely uncooperative and rude from time to time." § 87(2)(b) admitted to cursing at PO Truscelli and, according to PO Sansone, PO Truscelli, and EMT § 87(2)(b), § 87(2)(b) made comments that were racially-based towards EMT § 87(2)(b). Although not all of the officers corroborated that § 87(2)(b) was cursing and making racial comments, they all agreed that he was uncooperative.

Allegations Not Pleaded

§ 87(2)(b) was stopped and issued a summons § 87(2)(b). § 87(2)(g)

§ 87(2)(b) stated that PO Truscelli and § 87(2)(b) had "an unfriendly conversation" but he could not elaborate on what that meant. § 87(2)(b) stated that PO Truscelli told § 87(2)(b) "Don't give me this shit," but he did not allege that any officer ever cursed at or had a conversation with him. § 87(2)(g)

Although § 87(2)(b) alleged that he felt as though he was discriminated against during this incident because he is a homosexual, he stated that the officers at no time made any mention of his being gay or commented about his sexual orientation. § 87(2)(g)

Allegation A: PO Arthur Truscelli used physical force against § 87(2)(b)

Allegation B: PO Arthur Truscelli spoke obscenely to § 87(2)(b)

§ 87(2)(g)

Therefore it is recommended that allegations A and B be closed as *unsubstantiated*.

Investigator:

Sarah E. Turner

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: